

the requirements as compared to R. 38(2) EPC 1973, under which at least the date and the state of the previous application had to be indicated on filing.

Similarly, R. 53 EPC (R. 38(3) EPC 1973) provides that an applicant claiming priority shall file a copy of the previous application within sixteen months of the earliest priority date claimed.

In J 1/80 (OJ 1980, 289) it was stated that as R. 38(3) EPC 1973 permitted an applicant to file certified copies of the priority documents at any time before the end of the sixteenth month after the date of priority, there was only a deficiency which he must be given an invitation to correct if the priority documents had not been filed at the end of the period.

8.2. Correction of priority declarations

Under the EPC 1973, the correction of priority declarations was allowed under R. 88 EPC 1973. The possibility to correct the declaration of priority was expressly introduced into the EPC 2000 in R. 52(3) EPC. This additional possibility of correcting priority data under R. 52(3) EPC is not exhaustive and R. 139 EPC therefore continues to be applicable, too (see e.g. J 11/18, J 15/18).

8.2.1 Requirement for mistake to have been made

Under the EPC 1973, the Legal Board allowed correction of state designations under R. 88, first sentence, EPC 1973 (now R. 139 EPC), early on (J 8/80, OJ 1980, 293; J 12/80, OJ 1981, 143; J 3/81, OJ 1982, 100; J 21/84, OJ 1986, 75). Shortly afterwards the rather strict principles developed in these decisions were also applied in cases where correction of priority declarations was at stake. Although a mistake correctable under R. 88, first sentence, EPC 1973 could be an incorrect statement or the result of an omission, all the previous cases related to omitted priority declarations (J 3/82, OJ 1983, 171; J 4/82, OJ 1982, 385; J 14/82, OJ 1983, 121; J 11/89 and J 7/90, OJ 1993, 133).

In the four decisions J 3/91 (OJ 1994, 365), J 6/91 (OJ 1994, 349), J 9/91 and J 2/92 (OJ 1994, 375), the Legal Board refined the principles to be applied to corrections of priority declarations. In J 6/91 it analysed and summarised the previous case law, pointing out that the applicant had to prove a **mistake**, i.e. that the document filed with the EPO did not express the true intention of the person on whose behalf it was filed. In the earlier decisions the **burden of proof** on the applicant was defined as a heavy one. In J 9/91, however, the board took the view that the omission of a priority declaration would, in nearly every case, be an error. Thus, as a general rule, there was no need in cases of this kind to require special evidence to discharge the burden on the applicant of proving that a mistake had been made.

8.2.2 Time limit for request for correction

Despite the fact that R. 88, first sentence, EPC 1973 allowed correction without any time bar, the Legal Board followed the established case law requiring a request for correction

of a priority claim to be made sufficiently early for a warning to be included in the publication of the application (J 3/82, OJ 1983, 171; J 4/82, OJ 1982, 385; J 14/82, OJ 1983, 121). This principle was upheld because the EPO, when exercising its discretionary power under R 88, first sentence, EPC 1973 had to balance the applicant's interest in gaining optimum protection and a third party's interest in maintaining legal security and, in particular, in ensuring that the published application data were correct.

The board in J 6/91 noticed, however, that the previous case law in special circumstances already allowed the correction even without such a warning:

(i) if the EPO was partly responsible for the fact that no warning was published (J 12/80, OJ 1981, 143) and/or

(ii) if the interest of the public was not seriously affected because

- the mistake was obvious (in this sense, implicitly, J 8/80, OJ 1989, 293);

- under certain circumstances, where only a second or further priority was added (J 4/82, OJ 1982, 385; J 14/82, OJ 1983, 121; J 11/89);

- the public was otherwise informed about the full scope of protection sought by the applicant (J 14/82, OJ 1983, 121).

In J 3/91, J 6/91 and J 2/92 it was held that even after publication of a European patent application without a warning, the priority declaration could be corrected under R 88, first sentence, EPC 1973 provided that there was an **obvious discrepancy** in the published application indicating that something was wrong. In such a case the interests of third parties were not adversely affected by the correction.

In J 3/91 the board held that an experienced practitioner could have noticed the obvious discrepancy because the claimed Japanese priority date (31.12.1983) and the European application date (3.1.1984) were close together and the Japanese file number was mentioned.

In J 6/91 the international application in suit claiming priority from a US continuation-in-part application was itself presented as a continuation-in-part application and referred back to an earlier US application. In view of this and other special circumstances, the board allowed the addition of a (first) priority claim referring to the earlier US application.

In J 2/92 the US priority date claimed for a PCT application was, owing to a clerical error, a Saturday when the USPTO was closed, instead of the previous Friday. The correct date was indicated on the priority document. Owing to a further clerical error in the request for transmittal of priority documents under R 17.1(b) PCT (a typing error in the document number), the Receiving Office – in this case the USPTO – transmitted the wrong document to WIPO. The board allowed its replacement even after publication of the international application, adding, however, that this might not always be possible (see also T 33/06).

In the parallel cases T. 972/93 and T. 973/93 the examining division had refused a request for the priority date to be corrected. European patent application E1 claimed the priority of a French application F1, from which two French divisional applications F2 and F3 were filed within the priority year claiming the priority of the parent application. At issue in T. 972/93 and T. 973/93 were European applications E2 and E3, which claimed the priority of F2 and F3 respectively. In error however, the filing date of F2 and F3 was given as the priority date. This mistake was detected during examination proceedings, after E2 and E3 had been published with the wrong priority date, because E1 was discovered as a prior right within the meaning of Art. 54(3) EPC 1973 (Art. 54 EPC has been substantially amended – see chapter I.C. "Novelty").

The board of appeal allowed the correction (following J. 6/91, OJ 1994, 349), ruling that the mistake was apparent, because only eight months separated the filing date of E2 and E3 from the incorrect priority date, whereas the priority year was usually exploited to the full. The interests of third parties had not been adversely affected because the precautionary filing of two European divisional applications with respect to E1, which had the same content as F2 and F3, made it possible to gain protection for the subject-matters of E2 and E3 with the priority of F1.

On the other hand, in J. 7/94 (OJ 1995, 817) the board did not allow the correction. It held that the mere fact that an existing priority was not claimed could not justify adding this priority by correction. The correction of priority data, not requested sufficiently early for a warning to be included in the publication of the application, was only allowable if it was justified by special circumstances (confirming J. 6/91, OJ 1994, 349). See also T. 796/94.

In J. 11/92 (OJ 1995, 25) it was held that an incomplete priority declaration could be corrected, by the addition of an omitted priority in special circumstances, even after publication of the European patent application without a warning to the public that a request for correction had been made, provided that the public had been informed about the full scope of European patent protection sought, by way of a second European or Euro-PCT patent application, filed as a precautionary measure by the applicant in due time (referring to J. 6/91, OJ 1994, 349).

In T. 713/02 (OJ 2006, 267), the board held that the examination of a request for correction of priority data after the publication of the application was not to be restricted to that portion of the facts and circumstances which in a decision of a board of appeal in another case were considered not to preclude the correction. Therefore, in the case before the board, it could not be ignored that the requested correction by addition of an earlier priority date would eliminate from the state of the art pursuant to Art. 54(2) EPC 1973 a highly relevant document, which the applicant had previously de facto accepted as comprised in that state of the art (see, however, the notice from the European Patent Office regarding decision T. 713/02 (OJ 2006, 293), according to which the EPO's departments of first instance do not, for the time being, follow the findings that no decisions, except where a total loss of rights should be remedied, may be taken in the applicant's favour prior to the decisions terminating the granting procedure).

8.2.3 Correction of the priority declaration under Rule 52(3) EPC

New R. 52(3) EPC introduced the possibility to correct the declaration of priority. New R. 52(2) EPC and (3) EPC apply the time periods laid down in the PCT for the addition or correction of priority claims to Euro-direct applications, with the necessary terminological adjustments, in order to avoid treating Euro-PCT and Euro-direct applications differently. Pursuant to R. 52(3) EPC, an applicant may correct a declaration of priority within 'sixteen months from the earliest priority date claimed, or, where the correction would cause a change in the earliest priority date claimed, within sixteen months from the correct earliest priority date, whichever sixteen-month period expires first, provided that such correction may be submitted until the expiry of four months from the date of filing accorded to the European patent application'. However, for easy publication, a declaration of priority may not be made or corrected after a request under Art. 93(1)(b) EPC has been filed (R. 52(4) EPC).

9. Fiction of withdrawal of the application (Rule 100(3) EPC)

R. 100 EPC concerns the examination of appeals. If an applicant, as the appellant in ex parte appeal proceedings, fails to reply in due time to an invitation under R. 100(2) EPC, the European patent application is deemed to be withdrawn under R. 100(3) EPC. These provisions were previously contained in Art. 110(2) and (3) EPC 1973 respectively.

The Legal Board held in J 29/94 (OJ 1998, 147) that if the appellants failed to reply in due time to an invitation under Art. 110(3) EPC 1973, the European patent application was deemed withdrawn, even if the appeal related to formal points, as the effect of the appeal, namely that the board of appeal was now competent for the case, applied to the entire application (see chapter V.A.1. "Legal character of appeal procedure").

10. Publication of the application

Art. 93 EPC concerns the publication of the European patent application, which should take place as soon as possible after the expiry of a period of eighteen months from the date of filing, or, if priority has been claimed, from the date of priority, unless the applicant requests earlier publication. Under R. 67(1) EPC (R. 48 EPC 1973), the President of the EPO shall determine when the technical preparations for publication of the patent application are deemed to have been completed. The application shall not be published if it has been finally refused or withdrawn or is deemed to be withdrawn before the termination of the technical preparations for publication (R. 67(2) EPC).

In J 5/81 (OJ 1982, 155) it was stated that the key date for completion of the technical preparations for publication under Art. 93 EPC 1973 specifiable pursuant to R. 48(1) EPC 1973 could be said to give the applicant a certain minimum period of time within which his withdrawal of the application also prevented its publication. If the application was not withdrawn until after the key date, the applicant could no longer rely on its not being published. Nevertheless, the EPO was allowed by law to prevent publication, at its own discretion.

B. Examination procedure

1.	Stage before substantive examination	1119
1.1.	Amendments made by the applicant of his own volition under Rule 137(2) EPC	1119
1.2.	Request for examination (Rule 70 EPC)	1119
1.2.1	General issues	1119
1.2.2	The invitation to confirm early request for examination (R. 70(2) EPC)	1121
2.	The first stage of substantive examination	1122
2.1.	Beginning of "substantive examination"	1122
2.2.	Communications under Rule 71(1) and (2) EPC	1123
2.2.1	Invitation to correct deficiencies and to propose amendments (Rule 71(1) EPC)	1123
2.2.2	Content of Rule 71(2) EPC communication	1123
2.3.	Refusal after a single communication	1125
2.3.1	Discretion of the examining division	1125
2.3.2	Bona fide attempt to deal with the examining division's objections	1127
2.4.	Amendments under Rule 137(3) EPC	1128
2.4.1	Discretion of the examining division under Rule 137(3) EPC	1128
2.4.2	Consent under Rule 137(3) EPC in oral proceedings	1131
2.4.3	The burden of proposing amendments	1131
2.4.4	Converging or diverging versions of claims	1131
2.4.5	Reasons for the exercise of discretion	1132
2.4.6	Requests for amendments filed at an advanced stage in proceedings	1133
2.4.7	Late-filed requests after summons to oral proceedings in examination	1134
2.4.8	Second communication under Rule 71(3) EPC: the consent of the examining division	1134
2.5.	Failure to reply to the communication from the examining division (Article 94(4) EPC)	1135
2.5.1	Reply within the meaning of Article 94(4) EPC	1135
2.5.2	Waiver of the applicant's right to present comments	1136
2.6.	Issuing a further communication in light of Article 113(1) EPC	1136
2.6.1	Introduction	1136
2.6.2	Arguments taken into account in the decision of the examining division	1137
2.6.3	Inclusion of the essential reasoning	1138
2.6.4	Essential reasoning based on an International Preliminary Examination Report (IPER)	1139
2.6.5	Fresh argument based on grounds and evidence communicated beforehand	1139
2.6.6	Bona fide attempt by the applicant to overcome the objections	1140
2.6.7	Form of the communication under Article 113(1) EPC	1141
2.7.	Informal communications	1141
2.7.1	Telephone conversations	1141
2.7.2	Interviews	1142
3.	The grant stage in examination	1143
3.1.	Informing applicant of the text intended for grant (Rule 71(3) EPC)	1143
3.2.	Approval of the text by the applicant	1144